

Defendant has filed a Motion to strike the appearance of attorney for Plaintiff.

The Motion is unopposed; however, proof of mail service was signed by the Defendant.

Background

Defendant argues that the attorney who has been acting on behalf of Plaintiff, a corporation, cannot do so unless there is an agreement between client and attorney that is filed with the court, or entered into the minutes. Defendant's primary authority for this proposition is Section 283 of the CCP.

Analysis

To begin with, the court does not find proper service of the Plaintiff, since the proof of service in the instant matter was signed by the Defendant, which is inappropriate.

However, assuming proper service for the sake of argument, this court is still inclined to deny Defendant's Motion.

There is a presumption under California law that an attorney who appears in court on behalf of a client is presumed to have authority to do so. (*Milrot v. Stamper Medical Corp.* (1996) 44 Cal.App.4th 182, 187.) This presumption is well-settled and may be overcome only by a strong factual showing that the attorney lacked authorization. (*Sarracino v. Superior Court* (1974) 13 Cal.3d 1, 13.) The burden of rebutting the presumption rests with the moving party, and the absence of a retainer agreement or board resolution does not constitute affirmative evidence of lack of authority sufficient to rebut it. (See, e.g., *In re Helen W.* (2007) 150 Cal.App.4th 71, 78 [affirmative evidence of attorney's lack of authorization required; absence of documentation insufficient].) Indeed, an oral statement by counsel that he or she appears on a party's behalf suffices absent proof to the contrary. (*People v. American Bankers Ins. Co.* (1987) 191 Cal.App.3d 742, 745.)

The presumption may be rebutted, and the moving party bears the burden of proof. In the instant matter, Defendant has presented no evidence that counsel lacked authority to represent Plaintiff, only a demand that counsel prove she has it. Yet a demand for proof is not evidence of its absence and therefore falls far short of the strong factual showing required to overcome the presumption.

Disposition

Defendant's Motion is Denied.

Court to file Order.

8. 9:00 AM CASE NUMBER: L25-03538
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. GISELLE GOMEZ
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY: JPMORGAN CHASE BANK, N.A.

***TENTATIVE RULING**

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court.

Disposition

Motion continued to 7/21/26, 9am.

Plaintiff to file Order, and to properly notify Defendant of the Motion and the date of appearance.

9. 9:00 AM CASE NUMBER: L25-03680

CASE NAME: BANK OF AMERICA, N.A. VS. SEKANI SMITH

***HEARING ON MOTION IN RE: TO SET ASIDE DISM & ENTER JUDG UNDER STIP**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation.

Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,010.16, plus costs, and less any credits for payments received.

The agreement was filed with the court.